

SYDNEY NACHOR; ET AL. vs. JEFFCO PAINTING & COATING, INC.; ET AL.
Case No. CU25-04265

JEFFCO PAINTING & COATING, INC.'s Demurrer

TENTATIVE RULING

Defendant JEFFCO PAINTING & COATING, INC. ("JEFFCO") demurs to Plaintiffs SYDNEY NACHOR and TRACY NACHOR's first amended complaint in case CU25-04265 and Plaintiff RAYMUNDO CAMARENA's first amended complaint in case CU25-05331. The two complaints are essentially identical; both allege that Defendant RAYMUNDO DANIEL CAMARENA (a distinct person from Plaintiff RAYMUNDO CAMARENA) negligently caused Plaintiffs injury by driving a vehicle off the road while intoxicated. SYDNEY NACHOR and RAYMUNDO CAMARENA were passengers in the vehicle and directly injured; TRACY NACHOR is SYDNEY NACHOR's wife and alleges loss of consortium (her added cause of action being the sole significant difference between the two first amended complaints). Plaintiffs allege that JEFFCO negligently entrusted the vehicle to RAYMUNDO DANIEL CAMARENA.

Notice of Tentative Ruling. JEFFCO's notices of demurrer do not advise the recipients that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). JEFFCO is cautioned to observe local rules going forward.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Sham Pleading Doctrine. Under the sham pleading doctrine, plaintiffs are forbidden to amend complaints to omit harmful allegations from previous complaints or add allegations inconsistent with those of earlier complaints, unless a satisfactory explanation for the changes is made. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425 (*Deveny*).) If a party attempts to avoid the defects of an earlier complaint by filing an amended complaint with such unexplained omissions or additions the court may take judicial notice of the earlier pleading and disregard inconsistent allegations. (*Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 151.)